

★ STATE OF TEXAS ★
POLICY DIRECTIVE

Smart City AI Surveillance System Deployment Policy
Real-Time Crowd Analytics & Public Safety Platform

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Section 1 — PURPOSE

This policy establishes the requirements, procedures, and oversight mechanisms governing the deployment and operation of Artificial Intelligence (AI)-powered video surveillance and crowd analytics systems within public spaces across Texas municipalities. It is issued pursuant to Texas Government Code §2054 (Department of Information Resources), Texas Public Information Act (Chapter 552), and the Texas Privacy Protection Act framework.

The Smart City Public Safety Platform (SCPSP) leverages real-time video ingestion, machine-learning-based person detection, crowd density analytics, and AI-generated operational intelligence to support public safety operations conducted by Texas law enforcement, emergency management, and city operations centers. This policy ensures such systems are deployed transparently, proportionately, and in full compliance with applicable Texas and federal law.

Section 2 — SCOPE AND APPLICABILITY

This policy applies to all Texas state agencies, municipalities, county governments, and contracted third-party operators that deploy, operate, maintain, or access the SCPSP or any substantially similar AI video analytics system on public rights-of-way, parks, transit facilities, government buildings, event venues, or any publicly accessible space within the State of Texas.

Covered Entities:

- Texas Department of Public Safety (DPS) Operations Centers
- Municipal Police Departments with population $\geq 50,000$
- Texas Division of Emergency Management (TDEM) Command Centers
- Metropolitan Transit Authorities (DART, Houston Metro, CapMetro, VIA)
- Texas Parks and Wildlife Department — major public park installations
- City of Houston, Dallas, San Antonio, Austin, Fort Worth Operations Centers
- Contracted private operators managing public-space CCTV infrastructure

Section 3 — LEGAL AND REGULATORY FRAMEWORK

Deployments under this policy shall comply with the following statutes and regulations:

Legal Authority	Jurisdiction	Relevant Provision
Texas Government Code §2054	State	Enterprise technology governance and risk management
Texas Public Information Act (Ch. 552)	State	Public records, disclosure exemptions for security footage
Texas Occupations Code §1702	State	Electronic surveillance licensing requirements
Texas Penal Code §16.02	State	Unlawful interception — exemptions for public-space monitoring
Texas Administrative Code, Title 1, Part 10	State	DIR cybersecurity framework for state systems
Texas Open Meetings Act (Ch. 551)	State	Public notice requirements before system deployment
City of San Antonio Surveillance Technology Ordinance	Municipal	Community oversight board approval process
City of Austin ATI Policy ADM-6003	Municipal	Surveillance use policy and equity review
Federal Privacy Act of 1974 (5 U.S.C. §552a)	Federal	Personally Identifiable Information protection
Title VI, Civil Rights Act of 1964	Federal	Non-discrimination in federally funded programs

Legal Authority	Jurisdiction	Relevant Provision
NIST AI Risk Management Framework (AI RMF 1.0)	Federal Guidance	Trustworthy AI system development and governance

Section 4 — AUTHORIZED SYSTEM DESCRIPTION

The SCPSP is an on-premise AI crowd analytics system that processes live RTSP video feeds from municipal CCTV infrastructure. The system does not perform facial recognition, biometric identification, or individual tracking across camera zones. All processing occurs exclusively on locally hosted hardware (AMD Radeon AI PRO R9700S GPU nodes) with zero data transmission to cloud services.

Component	Description	Data Processed
Video Ingestion	GStreamer VA-API hardware-accelerated RTSP decode (100+ streams)	Raw video frames — not retained beyond processing window
Person Detection	YOLOv11 object detection — counts persons and vehicles per zone	Bounding box coordinates; no biometric data
Crowd Analytics	Per-zone density computation; threshold-based severity classification	Aggregate counts, density scores, severity labels
Alert Engine	Threshold breach detection; WebSocket push to operator dashboard	Zone ID, timestamp, count, severity — no PII
Heatmap Overlay	Spatial density visualization rendered on video stream	Frame-level pixel aggregation; not stored persistently
LLM Intelligence	Conversational Q&A; automated incident report generation	Aggregate event metadata; policy documents (RAG)
TimescaleDB Storage	Time-series persistence of alerts and crowd counts	Anonymized event records; 90-day retention maximum

Section 5 — PROHIBITED USES

The following uses of the SCPSP and any derived data are strictly prohibited. Violations may constitute a Class A misdemeanor under Texas Penal Code §39.02 (Abuse of Official Capacity) and may result in civil liability under 42 U.S.C. §1983.

- Facial recognition, biometric identification, or re-identification of individuals across camera views
- Targeted surveillance of any individual based on race, religion, national origin, political affiliation, sexual orientation, or any other protected characteristic under Texas or federal law
- Transmission or sharing of raw video footage or event data to any cloud service provider without an executed Data Processing Agreement compliant with Texas DIR Cloud Security Policy
- Sale, licensing, or commercial transfer of crowd analytics data to private entities
- Use of AI-generated reports as the sole or primary basis for arrest, citation, or any adverse legal action against an individual — human review is required
- Retention of video footage beyond 72 hours unless specifically authorized by court order or active criminal investigation documentation
- Integration with social media monitoring, license plate readers, or predictive policing systems without separate legislative authorization
- Deployment in places of worship, medical facilities, legal aid offices, or K-12 school grounds

Section 6 — PRE-DEPLOYMENT REQUIREMENTS

6.1 Community Notice and Public Hearing

Prior to operational deployment in any new zone or jurisdiction, the deploying entity shall: (a) publish a public notice in a newspaper of general circulation and on the entity's official website at least 30 calendar days in advance; (b) conduct a minimum of one public hearing with a dedicated comment period of not less than 14 days; and (c) publish the final deployment plan and community feedback summary on the entity's public records portal.

6.2 Privacy Impact Assessment

A Privacy Impact Assessment (PIA) conforming to Texas DIR standards shall be completed and approved by the entity's Chief Privacy Officer (or equivalent) before any deployment. The PIA shall address data minimization, retention schedules, access controls, breach notification procedures, and civil liberties impact analysis. PIAs shall be renewed annually or upon any material system change.

6.3 Signage Requirements

All monitored public spaces shall display visible signage in English and Spanish notifying the public that AI-assisted crowd monitoring is in operation. Minimum sign dimensions: 8.5" × 11". Signs shall include the operating agency's contact information and a QR code linking to the system's public policy summary.

Section 7 — OPERATOR DUTIES AND ACCESS CONTROLS

All personnel with access to live dashboard feeds, alert data, or stored event records shall complete the Texas DPS AI Systems Operator Certification (8-hour course, renewed annually). Access shall be role-based:

Role	Dashboard Access	Data Export	System Config
Viewer	Live map, alerts (read-only)	None	None
Operator	Live map, alerts, heatmaps, LLM Q&A	Anonymized summary reports	None
Supervisor	All operator access + historical analytics	Full event exports (logged)	Zone threshold configuration
Administrator	Full system access	Full exports (dual-approval)	All configuration, user management

Section 8 — INCIDENT RESPONSE AND ESCALATION

CRITICAL severity alerts generated by the SCPSP shall follow the escalation protocol defined in the Texas Emergency Management Plan (TEMP), Annex V. The following response timeframes are mandatory:

Severity Level	Trigger Condition	Required Response	Escalation Timeframe
SAFE	Crowd count < 80% of threshold	Monitor; no action required	N/A
HIGH	Crowd count 80–99% of threshold	Supervisor notification; increase monitoring frequency	15 minutes
CRITICAL	Crowd count ≥ threshold	Immediate supervisor + field unit notification; auto-popup stream activated	5 minutes
EMERGENCY	Multiple simultaneous CRITICAL alerts	Emergency Operations Center activation; DPS notification	Immediate

Section 9 — DATA RETENTION AND DISPOSAL

Data Type	Retention Period	Disposal Method	Authority
Live video frames	Not retained (real-time processing only)	N/A	This Policy §9.1

Data Type	Retention Period	Disposal Method	Authority
Crowd count time-series	30 days standard; 90 days for CRITICAL events	Secure overwrite (NIST 800-88)	Texas Records Retention Schedule GR1000-44
CRITICAL alert records	90 days standard; 7 years if related to prosecution	Secure overwrite or certified destruction	Texas LGC §202.001
LLM-generated reports	365 days; indefinite if used in legal proceedings	Secure overwrite	Texas Evidence Code §251
Audit logs	2 years minimum	Secure overwrite	Texas Administrative Code §202.75
Raw RTSP video (if captured)	72 hours maximum; court order may extend	Automated overwrite	Texas Occupations Code §1702.163

Section 10 — COMPLIANCE, AUDIT, AND OVERSIGHT

All deployments under this policy are subject to annual compliance review by the Texas Department of Information Resources (DIR). Deploying entities shall submit an Annual Surveillance Technology Report to DIR by January 31 of each calendar year, documenting: system usage statistics, alert counts by severity and zone, any data breaches or unauthorized access incidents, and community feedback summary. The Texas Sunset Advisory Commission may review this policy as part of its scheduled agency evaluations.

The Texas Legislature's House Committee on Homeland Security and Public Safety shall be provided a copy of each Annual Report. Any substantive policy revision requires approval of the DIR Executive Director and notification to the Legislative Budget Board.

Section 11 — APPROVAL AND SIGNATURES

This policy is approved and effective as of the date indicated on the cover page. Supersedes all prior guidance on AI surveillance system deployment issued by covered entities.

Signature & Date

Director, Texas DPS

Texas Department of Public Safety

Signature & Date

CIO, Office of Smart City Initiatives

Texas DIR

Signature & Date

Chief Privacy Officer

Texas DIR